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MEDICAL FACULTY QUESTIONNAIRE

Please submit a separate review form for each defendant.

CLAIM INFO (TO BE COMPLETED BY CLAIM INVESTIGATOR)

MagMutual File #:

MagMutual Contact:

Date Requested:

Contact Phone:

Contact E-mail:

Patient Name:

Defendant Name:

Defendant Specialty:

Reviewer Name:

Reviewer Specialty:

Reviewer Phone Number:

Reviewer Email:

Brief synopsis/
Medical care summary:

Alleged injury/
Medical terms related
to injury:

Summary of allegations:

REMAINDER OF FORM TO BE COMPLETED BY MEDICAL FACULTY REVIEWER

SECTION I: OVERVIEW AND TIMELINE OF KEY POINTS

The information you provide in this form is vital to our claim team's understanding of the care rendered by the defendant. Your opinions significantly inform the claim strategy, and we appreciate your time, effort, and expertise. To ensure a quality review, please:

- Be objective. Avoid hindsight bias based on the outcome or the severity of an injury; the result of a case should not influence your evaluation of the provider's actions.
- Be honest. Resist defending substandard care. A truthful, unbiased assessment is critical. If care was exceptionally good or bad, acknowledge it.
- Be thorough. Please complete all sections and provide additional relevant details where applicable.

NOTE: If at any point during your review, more information is needed to render an opinion, please **STOP** and immediately notify the MagMutual contact listed on page 1.

QUESTION

RESPONSE

1. Did you receive all the records (including medical records, lab results, imaging, etc.) and pertinent documents (e.g. policies) needed to complete this review?

☐ Yes ☐ No

If **No**, **STOP** and notify the MagMutual contact listed on page 1.

2. What role did the defendant play in the care of this patient?
Select all that apply.

- ☐ defendant had a primary role in managing the patient ("primary" refers to level of responsibility, not specialty – i.e., not primary care)
- ☐ defendant was a consultant
- ☐ defendant served in a supervisory role (includes supervision of students, residents, PA, NP, CNM, etc).
- ☐ defendant is a group, hospital, or other healthcare facility
- ☐ other

Briefly describe the defendant's role

3. Is any key information missing or incorrect from the timeline you were provided?

☐ Yes ☐ No ☐ No timeline was provided

If **Yes**, what information was missing or incorrect? If **no timeline was provided**, please include a timeline outlining the key medical events relevant to this case and this defendant.

SECTION II: DEGREE OF INJURY

QUESTION

RESPONSE

1. Based on your review, please describe the injury the patient incurred:

2. Please select the degree of injury alleged and the degree of injury suffered. In the event a patient has multiple injuries, rate the most severe injury and discuss any other injury in Question 'C' below. As a reminder, be objective and avoid hindsight bias. Your rating of the degree of injury should not be influenced by your opinions of the quality of care or causation and vice versa.

INJURY SEVERITY SCALE REFERENCE

- | | |
|---|---|
| <p>1 No physical injury occurred; there were only emotional injuries such as fright, a claim of wrongful confinement to a mental hospital, etc.</p> <p>3 Relatively minor injuries where recovery is complete but delayed; infections; missed fractures that heal with acceptable results; delay in diagnosing appendicitis without complications.</p> <p>5 Injuries that are permanent in nature but non-disabling and do not generally compromise the basic ADLs; removal of bowel due to circulatory compromise; loss of one ovary or one testicle; loss of fingers or toes, etc. OR a neurological injury resulting in slight disability, possibly not able to carry out all previous activities, but able to look after own affairs without assistance.</p> <p>7 Severe permanent injury; loss of two legs as opposed to one; paraplegia; severe and visible disfigurement; total blindness; permanent renal failure; permanent colostomy; aseptic necrosis of a femoral head, etc. OR a neurological injury requiring assistance to walk and attend to bodily needs.</p> <p>9 Death of the patient</p> | <p>2 Very slight, if any physical injury at all; lacerations; contusions; minor scars. Limited medical treatment required with no delay in recovery.</p> <p>4 Serious temporary injuries where there was a delay in recovery with complication; temporary colostomy; temporary ventilator support; internal injury like bowel perforation with recovery, etc.</p> <p>6 Injuries that are permanent and affect ADLs; deafness; loss of one limb or one eye; loss of one kidney or one lung; permanent foot or wrist drop; failure to diagnose cancer without evidence of spread, etc. OR a neurological injury with moderate disability; requires some help, but able to walk without assistance.</p> <p>8 Most significant injuries where patient survives but has fatal prognosis or requires lifelong care; severe brain damage; CP; quadriplegia; major burns; failure to diagnose cancer with evidence of spread and a poor prognosis, etc. OR a neurological injury resulting in being bedridden, incontinent and requiring constant nursing care and attention.</p> |
|---|---|

Degree of injury alleged:

select a rating

1	2	3	4	5	6	7	8	9
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Degree of injury suffered:

select a rating

1	2	3	4	5	6	7	8	9
---	---	---	---	---	---	---	---	---

3. Please discuss the impact the injury will have on the patient and/or Plaintiff.

4. If you checked different boxes in the "Degree of Injury Alleged" and the "Degree of Injury Suffered" columns, please comment specifically on your reasoning regarding the difference in degrees.

SECTION III. DETAILED CASE EVALUATION

This section includes an assessment of 5 phases of care applicable to *most* patient encounters. Some sections or questions may not be relevant to a claim (“Not Applicable”), and some information may not be discernable from the medical record (“Unclear”). Please provide as much accurate, relevant, and detailed information as possible to enhance the claim analyst’s understanding of the case, including what information is missing, if any, when your answer is “unclear”.

PATIENT INTAKE/ASSESSMENT SECTION**QUESTION****RESPONSE**

1. Did the defendant fail to assess the patient within an appropriate timeframe?

☐ Yes ☐ No ☐ Unclear ☐ Not Applicable

If **Yes or Unclear**, explain

was this a deviation from acceptable practice?

☐ Yes ☐ No ☐ Unclear

If **Yes or Unclear**, explain

did it **likely impact** the patient’s care or outcome?

☐ Yes ☐ No ☐ Unclear

If **Yes or Unclear**, explain

2. Did the defendant fail to review any pertinent medical records (i.e., historical records, outside records, etc.)

☐ Yes ☐ No ☐ Unclear ☐ Not Applicable

If **Yes or Unclear**, what information was missed or overlooked?

was this a deviation from acceptable practice?

☐ Yes ☐ No ☐ Unclear

If **Yes or Unclear**, explain

did it **likely impact** the patient’s care or outcome?

☐ Yes ☐ No ☐ Unclear

If **Yes or Unclear**, explain

3. Was there missed, insufficient or incorrect documentation in the defendant’s medical history or physical exam?

☐ Yes ☐ No ☐ Unclear ☐ Not Applicable

If **Yes or Unclear**, what elements were missing or insufficient?

was this a deviation from acceptable practice?

☐ Yes ☐ No ☐ Unclear

If **Yes or Unclear**, explain

did it **likely impact** the patient’s care or outcome?

☐ Yes ☐ No ☐ Unclear

If **Yes or Unclear**, explain

PATIENT INTAKE/ASSESSMENT, CONT.

QUESTION		RESPONSE			
4. Did the defendant fail to timely engage any indicated consultants to assess the patient?		☐ Yes	☐ No	☐ Unclear	☐ Not Applicable
If Yes or Unclear ,	which consultations should have been requested or requested sooner?				
	was this a deviation from acceptable practice?	☐ Yes	☐ No	☐ Unclear	
	If Yes or Unclear , explain				
	did it likely impact the patient's care or outcome?	☐ Yes	☐ No	☐ Unclear	
	If Yes or Unclear , explain				
5. Did the defendant fail to accommodate the patient's communication needs during the intake/assessment process?		☐ Yes	☐ No	☐ Unclear	☐ Not Applicable
If Yes or Unclear	what communication barriers were not adequately addressed (e.g., health literacy, use of interpretation services)?				
	was this a deviation from acceptable practice?	☐ Yes	☐ No	☐ Unclear	
	If Yes or Unclear , explain				
	did it likely impact the patient's care or outcome?	☐ Yes	☐ No	☐ Unclear	
	Explain				
6. Was there missed, insufficient or incorrect documentation in this defendant's initial clinical impression(s) and plan?		☐ Yes	☐ No	☐ Unclear	☐ Not Applicable
If Yes or Unclear ,	what elements were missing, insufficient or incorrect?				
	was this a deviation from acceptable practice?	☐ Yes	☐ No	☐ Unclear	
	If Yes or Unclear , explain				
	did it likely impact the patient's care or outcome?	☐ Yes	☐ No	☐ Unclear	
	If Yes or Unclear , explain				

PATIENT INTAKE/ASSESSMENT, CONT.

QUESTION

7. Was there any delay or miscommunication between this defendant and other providers during the patient intake/assessment process?

If **Yes or Unclear**, describe the issue

RESPONSE

☐ Yes ☐ No ☐ Unclear ☐ Not Applicable

Check all that apply

☐ Handoff ☐ Interdisciplinary ☐ Emergency situation
☐ Supervision/Hierarchy

was this a deviation from acceptable practice?

☐ Yes ☐ No ☐ Unclear

If **Yes or Unclear**, explain

did it **likely impact** the patient's care or outcome?

☐ Yes ☐ No ☐ Unclear

If **Yes or Unclear**, explain

8. If you identified any deviation(s) from acceptable practice in Q1-7, are there reasonable explanations or justifications for the defendant's actions?

☐ Yes ☐ No ☐ Unclear ☐ Not Applicable

If **Yes or Unclear**, explain

9. Please provide any additional insights related to the patient intake or assessment that may impact our understanding of the medical care provided.

DIAGNOSTIC WORK UP

QUESTION

RESPONSE

1. Was the differential diagnosis incomplete or incorrect?

☐ Yes ☐ No ☐ Unclear ☐ Not Applicable

If **Yes** or **Unclear**, what was insufficient re: the differential?

was this a deviation from acceptable practice?

☐ Yes ☐ No ☐ Unclear

If **Yes** or **Unclear**, explain

did it **likely impact** the patient's care or outcome?

☐ Yes ☐ No ☐ Unclear

If **Yes** or **Unclear**, explain

2. Did the defendant fail to order any indicated diagnostic tests or procedures?

☐ Yes ☐ No ☐ Unclear ☐ Not Applicable

If **Yes** or **Unclear**, what diagnostic tests or procedures were omitted or inappropriately ordered?

was this a deviation from acceptable practice?

☐ Yes ☐ No ☐ Unclear

If **Yes** or **Unclear**, explain

did it **likely impact** the patient's care or outcome?

☐ Yes ☐ No ☐ Unclear

If **Yes** or **Unclear**, explain

3. Did the defendant fail to review any pertinent test results in a timely manner?

☐ Yes ☐ No ☐ Unclear ☐ Not Applicable

If **Yes** or **Unclear**, what delays or oversights occurred in reviewing diagnostic results?

was this a deviation from acceptable practice?

☐ Yes ☐ No ☐ Unclear

If **Yes** or **Unclear**, explain

did it **likely impact** the patient's care or outcome?

☐ Yes ☐ No ☐ Unclear

If **Yes** or **Unclear**, explain

DIAGNOSTIC WORK UP, CONTINUED

QUESTION

RESPONSE

4. Was there a missed or incorrect interpretation of any diagnostic tests or findings by this defendant?

☐ Yes ☐ No ☐ Unclear ☐ Not Applicable

If **Yes** or **Unclear**, which interpretations were incorrect or missed

was this a deviation from acceptable practice?

☐ Yes ☐ No ☐ Unclear

If **Yes** or **Unclear**, explain

did it **likely impact** the patient's care or outcome?

☐ Yes ☐ No ☐ Unclear

If **Yes** or **Unclear**, explain

5. Did the defendant fail to accommodate the patient's communication needs during the diagnostic workup process?

☐ Yes ☐ No ☐ Unclear ☐ Not Applicable

If **Yes** or **Unclear**, what communication barriers were not adequately addressed (e.g., comprehension, or use of interpretation services)?

was this a deviation from acceptable practice?

☐ Yes ☐ No ☐ Unclear

If **Yes** or **Unclear**, explain

did it **likely impact** the patient's care or outcome?

☐ Yes ☐ No ☐ Unclear

If **Yes** or **Unclear**, explain

6. Did the defendant delay or miscommunicate any test results to the patient?

☐ Yes ☐ No ☐ Unclear ☐ Not Applicable

If **Yes** or **Unclear**, What information was not communicated, or was communicated late or ineffectively?

was this a deviation from acceptable practice?

☐ Yes ☐ No ☐ Unclear

If **Yes** or **Unclear**, explain

did it **likely impact** the patient's care or outcome?

☐ Yes ☐ No ☐ Unclear

If **Yes** or **Unclear**, explain

DIAGNOSTIC WORK UP, CONTINUED

QUESTION

RESPONSE

7. Was there any delay or miscommunication between this defendant and other providers throughout the diagnostic workup?

☐ Yes ☐ No ☐ Unclear ☐ Not Applicable

If **Yes** or **Unclear**, describe the issue

Check all that apply:

☐ Handoff ☐ Interdisciplinary ☐ Emergency situation
☐ Supervision/Hierarchy

was this a deviation from acceptable practice?

☐ Yes ☐ No ☐ Unclear

If **Yes** or **Unclear**, explain

did it **likely impact** the patient's care or outcome?

☐ Yes ☐ No ☐ Unclear

If **Yes** or **Unclear**, explain

8. Did the defendant fail to document his/her rationale for testing, interpretation of results, or final diagnosis?

☐ Yes ☐ No ☐ Unclear ☐ Not Applicable

If **Yes** or **Unclear**, what elements were missing or incorrect?

was this a deviation from acceptable practice?

☐ Yes ☐ No ☐ Unclear

If **Yes** or **Unclear**, explain

did it **likely impact** the patient's care or outcome?

☐ Yes ☐ No ☐ Unclear

If **Yes** or **Unclear**, explain

DIAGNOSTIC WORK UP, CONTINUED

QUESTION	RESPONSE			
9. Was there a missed, delayed, or incorrect DIAGNOSIS by this defendant?	☐ Yes	☐ No	☐ Unclear	☐ Not Applicable
What was the correct diagnosis (i.e., the actual diagnosis, or—if missed, delayed, or incorrect—the diagnosis that should have been made)?				
If Yes or Unclear , what diagnosis was made in lieu of the correct one:				
was the diagnosis that was missed or delayed the result of a complication of a procedure or surgery (i.e., bowel injury from hysterectomy),	☐ Yes	☐ No	☐ Unclear	☐ Not Applicable
If Yes or Unclear , what was the procedure or surgery that resulted in the complication:				
was the missed, delayed, or incorrect diagnosis a deviation from acceptable practice?	☐ Yes	☐ No	☐ Unclear	
If Yes or Unclear , explain				
did it likely impact the patient's care or outcome?	☐ Yes	☐ No	☐ Unclear	
If Yes or Unclear , explain				
10. If you identified any deviation(s) from acceptable practice in Q1-9, are there reasonable explanations or justifications for the defendant's actions?	☐ Yes	☐ No	☐ Unclear	☐ Not Applicable
If Yes or Unclear , Explain				
11. Please provide any additional insights related to the diagnostic workup process that may impact our understanding of the medical care provided.				

TREATMENT

QUESTION

RESPONSE

1. Did the defendant fail to engage any indicated consultants or utilize external resources to arrive at a treatment plan?

☐ Yes ☐ No ☐ Unclear ☐ Not Applicable

If **Yes or Unclear**, which consultations or resources would have been appropriate?

was this a deviation from acceptable practice?

☐ Yes ☐ No ☐ Unclear

If **Yes or Unclear**, explain

did it **likely impact** the patient's care or outcome?

☐ Yes ☐ No ☐ Unclear

If **Yes or Unclear**, explain

2. Were there any treatment options that SHOULD have been offered/discussed by this defendant but were not ?

☐ Yes ☐ No ☐ Unclear ☐ Not Applicable

If **Yes or Unclear**, which options should have been communicated?

was this a deviation from acceptable practice?

☐ Yes ☐ No ☐ Unclear

If **Yes or Unclear**, explain

did it **likely impact** the patient's care or outcome?

☐ Yes ☐ No ☐ Unclear

If **Yes or Unclear**, explain

3. Was there missing or insufficient documentation of informed consent by this defendant?

☐ Yes ☐ No ☐ Unclear ☐ Not Applicable

If **Yes or Unclear**, what documentation was incorrect or missing (e.g., risks, benefits, alternatives – please be as specific as possible)?

was this a deviation from acceptable practice?

☐ Yes ☐ No ☐ Unclear

If **Yes or Unclear**, explain

did it **likely impact** the patient's care or outcome?

☐ Yes ☐ No ☐ Unclear

If **Yes or Unclear**, explain

TREATMENT, CON'T

QUESTION

RESPONSE

4. Was treatment rendered by this defendant without consent?

☐ Yes ☐ No ☐ Unclear ☐ Not Applicable

If **Yes** or **Unclear**, what was the treatment performed without consent?

was this a deviation from acceptable practice?

☐ Yes ☐ No ☐ Unclear

If **Yes** or **Unclear**, explain

did it **likely impact** the patient's care or outcome?

☐ Yes ☐ No ☐ Unclear

If **Yes** or **Unclear**, explain

5. Did the defendant fail to accommodate the patient's communication needs during treatment or the treatment decision-making process?

☐ Yes ☐ No ☐ Unclear ☐ Not Applicable

If **Yes** or **Unclear**, what communication barriers were not adequately addressed (e.g., comprehension, or use of interpretation services)?

was this a deviation from acceptable practice?

☐ Yes ☐ No ☐ Unclear

If **Yes** or **Unclear**, explain

did it **likely impact** the patient's care or outcome?

☐ Yes ☐ No ☐ Unclear

If **Yes** or **Unclear**, explain

6. Was there delayed, insufficient or miscommunication between this defendant and the patient regarding the treatment plan?

☐ Yes ☐ No ☐ Unclear ☐ Not Applicable

If **Yes** or **Unclear**, what was omitted or delayed?

was this a deviation from acceptable practice?

☐ Yes ☐ No ☐ Unclear

If **Yes** or **Unclear**, explain

did it **likely impact** the patient's care or outcome?

☐ Yes ☐ No ☐ Unclear

If **Yes** or **Unclear**, explain

TREATMENT, CON'T

QUESTION

7. Was there any delay or miscommunication between the defendant and other providers involved in the planning, ordering, or rendering of the treatment?

If **Yes** or **Unclear**, describe the issue

RESPONSE

☐ Yes ☐ No ☐ Unclear ☐ Not Applicable

Check all that apply:

☐ Handoff ☐ Interdisciplinary ☐ Emergency situation
☐ Supervision/Hierarchy

was this a deviation from acceptable practice?

☐ Yes ☐ No ☐ Unclear

If **Yes** or **Unclear**, explain

did it **likely impact** the patient's care or outcome?

☐ Yes ☐ No ☐ Unclear

If **Yes** or **Unclear**, explain

8. Was there missing, insufficient, or incorrect documentation of the treatment plan by this defendant?

If **Yes** or **Unclear**, specify what elements were missing or incorrect:

☐ Yes ☐ No ☐ Unclear ☐ Not Applicable

was this a deviation from acceptable practice?

☐ Yes ☐ No ☐ Unclear

If **Yes** or **Unclear**, explain

did it **likely impact** the patient's care or outcome?

☐ Yes ☐ No ☐ Unclear

If **Yes** or **Unclear**, explain

TREATMENT, CON'T

QUESTION

RESPONSE

9. Was there a missed, delayed, incorrect, or unindicated TREATMENT by this defendant?

☐ Yes ☐ No ☐ Unclear ☐ Not Applicable

What was the diagnosis or condition necessitating treatment?

If **Yes** or **Unclear**,

please describe the treatment issue - what was done in error and what should have been done instead:

did the treatment error occur secondary to and **ONLY** because of a diagnostic error?

☐ Yes ☐ No ☐ Unclear

If **Yes** or **Unclear**, explain

if this was a medication error, what type of error occurred?

☐ Ordering Error ☐ Administration Error ☐ Other

was the treatment issue a deviation from acceptable practice?

☐ Yes ☐ No ☐ Unclear

If **Yes** or **Unclear**, explain

did it **likely impact** the patient's care or outcome?

☐ Yes ☐ No ☐ Unclear

If **Yes** or **Unclear**, explain

10. If you identified any deviation(s) from acceptable practice in Q1-9, are there reasonable explanations or justifications for the defendant's actions?

☐ Yes ☐ No ☐ Unclear ☐ Not Applicable

If **Yes** or **Unclear**, explain

11. Please provide any additional insights related to the patient treatment that may impact our understanding of the medical care provided.

PROCEDURES/SURGERIES

QUESTION

RESPONSE

1. Did the defendant perform or participate in a procedure or surgery (diagnostic OR therapeutic) on this patient? ☐ Yes ☐ No ☐ Unclear

If **No**, Skip this section and move to MONITORING AND FOLLOWUP

If **Unclear** **STOP** and notify MAGMUTUAL

If **Yes** What was the procedure(s) or surgery(ies)?

1a. Was the procedure or surgery involving this defendant unwarranted or performed WITHOUT an appropriate indication? ☐ Yes ☐ No ☐ Unclear

If **Yes or Unclear**, Explain

1b. Did the procedure or surgery involving this defendant likely impact the patient's care or outcome? ☐ Yes ☐ No ☐ Unclear

If **Yes or Unclear**, explain

2. Was their missing or insufficient documentation of informed consent for the procedure or surgery involving this defendant? ☐ Yes ☐ No ☐ Unclear ☐ Not Applicable

If **Yes or Unclear**, what was missing or insufficient?

was this a deviation from acceptable practice? ☐ Yes ☐ No ☐ Unclear

If **Yes or Unclear**, explain

did it **likely impact** the patient's care or outcome? ☐ Yes ☐ No ☐ Unclear

If **Yes**, explain

3. Was the procedure, surgery, or any component, performed without the patient's consent? ☐ Yes ☐ No ☐ Unclear ☐ Not Applicable

If **Yes or Unclear**, what was performed without consent?

was this a deviation from acceptable practice? ☐ Yes ☐ No ☐ Unclear

If **Yes or Unclear**, explain

did it **likely impact** the patient's care or outcome? ☐ Yes ☐ No ☐ Unclear

If **Yes**, explain

PROCEDURES/SURGERIES, cont.

QUESTION	RESPONSE
4. Was there a <i>complication</i> of the procedure, surgery or intervention involving this defendant ?	☐ Yes ☐ No ☐ Unclear ☐ Not Applicable
If Yes or Unclear, what procedure /surgery resulted in the complication? what was the indication for the procedure/surgery: what was the complication that resulted: were there any standard/established safety practices or precautions that were overlooked or not followed (e.g., timeout procedure, safety belt) ? If Yes or Unclear, explain	☐ Yes ☐ No ☐ Unclear
Which factor(s), if any, impacted this complication If Other, explain	☐ Technique ☐ Wrong Site ☐ Retained Foreign Body ☐ Other
was the complication a known risk? If No or Unclear, explain	☐ Yes ☐ No ☐ Unclear
is there documentation that the known risk was communicated to the patient prior to the procedure and/or surgery? If No or Unclear, explain	☐ Yes ☐ No ☐ Unclear
was there a failure to recognize the complication in a timely manner? If Yes or Unclear, explain	☐ Yes ☐ No ☐ Unclear
was there a failure to treat the complication according to the standard of care and/or in a timely manner? If Yes or Unclear, explain	☐ Yes ☐ No ☐ Unclear
did the complication likely impact the patient's care or outcome? If Yes or Unclear, explain	☐ Yes ☐ No ☐ Unclear

PROCEDURES/SURGERIES, CON'T

QUESTION

RESPONSE

5. Did the defendant fail to accommodate the patient's communication needs during the procedure/surgery?

☐ Yes ☐ No ☐ Unclear ☐ Not Applicable

If **Yes** or **Unclear**,
what communication barriers were not adequately addressed (e.g., comprehension, or use of interpretation services)?

was this a deviation from acceptable practice?

☐ Yes ☐ No ☐ Unclear

If **Yes** or **Unclear**, explain

did it **likely impact** the patient's care or outcome?

☐ Yes ☐ No ☐ Unclear

If **Yes** or **Unclear**, explain

6. Was there any delayed or miscommunication between this defendant and other providers involved in the procedure/surgery?

☐ Yes ☐ No ☐ Unclear ☐ Not Applicable

If **Yes** or **Unclear**,
describe the issue

Check all that apply:

☐ Handoff ☐ Interdisciplinary ☐ Emergency situation
☐ Supervision/Hierarchy

was this a deviation from acceptable practice?

☐ Yes ☐ No ☐ Unclear

If **Yes** or **Unclear**, explain

did it **likely impact** the patient's care or outcome?

☐ Yes ☐ No ☐ Unclear

If **Yes** or **Unclear**, explain

PROCEDURES/SURGERIES, CON'T

QUESTION

RESPONSE

7. Was there missing, insufficient, or incorrect information in this defendant's procedure/surgery documentation?

☐ Yes☐ No☐ Unclear☐ Not Applicable

If **Yes** or **Unclear**, specify what elements were missing or incorrect:

was this a deviation from acceptable practice?

☐ Yes☐ No☐ Unclear

If **Yes** or **Unclear**, explain

did it **likely impact** the patient's care or outcome?

☐ Yes☐ No☐ Unclear

If **Yes** or **Unclear**, explain

8. If you identified any deviation(s) from acceptable practice in Q2-8, are there explanations or justifications for the defendant's actions?

☐ Yes☐ No☐ Unclear☐ Not Applicable

If **Yes** or **Unclear**, explain

9. Please provide any additional insights related to the procedure or surgery that may impact our understanding of the medical care provided.

MONITORING AND FOLLOWUP

QUESTION

RESPONSE

1. Did the defendant fail to order/render any indicated assessments following the treatment, procedure, or surgery (e.g., appropriately observed in PACU, admitted, rounded on post-procedure)?

☐ Yes ☐ No ☐ Unclear ☐ Not Applicable

If **Yes** or **Unclear**, what assessments were missed or insufficient?

was this a deviation from acceptable practice?

☐ Yes ☐ No ☐ Unclear

If **Yes** or **Unclear**, explain

did it **likely impact** the patient's care or outcome?

☐ Yes ☐ No ☐ Unclear

If **Yes** or **Unclear**, explain

2. Did the defendant fail to order any indicated tests for monitoring treatment (e.g., INR, peaks/troughs, LFTs, etc.)?

☐ Yes ☐ No ☐ Unclear ☐ Not Applicable

If **Yes** or **Unclear**, what tests should have been ordered?

was this a deviation from acceptable practice?

☐ Yes ☐ No ☐ Unclear

If **Yes** or **Unclear**, explain

did it **likely impact** the patient's care or outcome?

☐ Yes ☐ No ☐ Unclear

If **Yes** or **Unclear**, explain

MONITORING AND FOLLOWUP, CON'T

QUESTION

RESPONSE

3. Did the defendant fail to order/plan the appropriate follow-up visits?

☐ Yes ☐ No ☐ Unclear ☐ Not Applicable

If **Yes** or **Unclear**, what follow-up should have been included?

was this a deviation from acceptable practice?

☐ Yes ☐ No ☐ Unclear

If **Yes** or **Unclear**, explain

did it **likely impact** the patient's care or outcome?

☐ Yes ☐ No ☐ Unclear

If **Yes** or **Unclear**, explain

4. Did the defendant fail to accommodate the patient's communication needs during the monitoring and follow-up process?

☐ Yes ☐ No ☐ Unclear ☐ Not Applicable

If **Yes** or **Unclear**, what communication barriers were not adequately addressed (e.g., comprehension, or use of interpretation services)?

was this a deviation from acceptable practice?

☐ Yes ☐ No ☐ Unclear

If **Yes** or **Unclear**, explain

did it **likely impact** the patient's care or outcome?

☐ Yes ☐ No ☐ Unclear

If **Yes** or **Unclear**, explain

MONITORING AND FOLLOWUP, CON'T

QUESTION

5. Was there any delayed or miscommunication between this defendant and other providers involved in the monitoring and follow-up process?

If **Yes or Unclear**, describe the issue

RESPONSE

☐ Yes ☐ No ☐ Unclear ☐ Not Applicable

Check all that apply:

☐ Handoff ☐ Interdisciplinary ☐ Emergency situation
☐ Supervision/Hierarchy

was this a deviation from acceptable practice?

☐ Yes ☐ No ☐ Unclear

If **Yes or Unclear**, explain

did it **likely impact** the patient's care or outcome?

☐ Yes ☐ No ☐ Unclear

If **Yes or Unclear**, explain

6. Was there missing, insufficient, or incorrect documentation of post-treatment monitoring, follow-up planning, and patient education or discharge instructions by this defendant?

If **Yes or Unclear**, specify what elements were missing or incorrect:

☐ Yes ☐ No ☐ Unclear ☐ Not Applicable

was this a deviation from acceptable practice?

☐ Yes ☐ No ☐ Unclear

If **Yes or Unclear**, explain

did it **likely impact** the patient's care or outcome?

☐ Yes ☐ No ☐ Unclear

If **Yes or Unclear**, explain

7. If you identified any deviation(s) from acceptable practice in Q1-7, are there reasonable explanations or justifications for the defendant's actions?

If **Yes or Unclear**, explain

☐ Yes ☐ No ☐ Unclear ☐ Not Applicable

8. Please provide any additional insights related to the monitoring and follow-up process that may impact our understanding of the medical care provided.

ADDITIONAL CONTRIBUTING FACTORS

QUESTION		RESPONSE			
1. Did the provider breach any policies or protocols established by the group, hospital, or national organizations?		☐ Yes	☐ No	☐ Unclear	☐ Not Applicable
If Yes or Unclear ,	specify the policy or protocol and describe the breach:				
	was this a deviation from acceptable practice?	☐ Yes	☐ No	☐ Unclear	
	If Yes or Unclear , explain				
	did it likely impact the patient's care or outcome?	☐ Yes	☐ No	☐ Unclear	
	If Yes or Unclear , explain				
2. Was there a lack of standard processes, policies, or procedures that contributed to the event?		☐ Yes	☐ No	☐ Unclear	☐ Not Applicable
If Yes or Unclear ,	specify the processes, policies, or procedures that should have been in place:				
	was this a deviation from acceptable practice?	☐ Yes	☐ No	☐ Unclear	
	If Yes or Unclear , explain				
	did it likely impact the patient's care or outcome?	☐ Yes	☐ No	☐ Unclear	
3. Was there a medical equipment or technology issue that impacted care?		☐ Yes	☐ No	☐ Unclear	☐ Not Applicable
If Yes or Unclear ,	describe the issue:				
	was this a deviation from acceptable practice?	☐ Yes	☐ No	☐ Unclear	
	If Yes or Unclear , explain				
	did it likely impact the patient's care or outcome?	☐ Yes	☐ No	☐ Unclear	
	If Yes or Unclear , explain				

ADDITIONAL CONTRIBUTING FACTORS, cont.

QUESTION

RESPONSE

4. Did the patient contribute to the outcome in any way? (e.g. patient non-adherence, failure to disclose pertinent history, etc.)

☐ Yes ☐ No ☐ Unclear

If **Yes** or **Unclear**, describe the issue, how/whether it was addressed, and how it impacted the outcome:

5. Was “jousting” an issue (i.e., criticism, blame, or undermining of colleagues)?

☐ Yes ☐ No ☐ Unclear

If **Yes** or **Unclear**, please describe

6. Were there any issues with the defendant’s professional practice or behavior, reckless behavior or evidence of a health concern impacting care? (e.g. disruptive behavior, substance use, cognitive impairment, etc.)

☐ Yes ☐ No ☐ Unclear ☐ Not Applicable

If **Yes** or **Unclear**, please describe

did it **likely impact** the patient’s care or outcome?

☐ Yes ☐ No ☐ Unclear

If **Yes** or **Unclear**, explain

7. If you identified any deviation(s) from acceptable practice in Q2-8, are there explanations or justifications for the defendant’s actions?

☐ Yes ☐ No ☐ Unclear ☐ Not Applicable

If **Yes** or **Unclear**, explain

8. Please provide any additional insights related to additional contributing factors that may impact our understanding of the medical care provided

Note: When responding to the below questions, Degree of Injury (DOI) does not imply the Standard of Care or Causation. It's possible for the Standard of Care to be of high quality and the Causation to be very good, and yet the Degree of Injury could be severe, including major permanent harm or even death. Conversely, even when the Standard of Care and Causation are significantly lacking, the Degree of Injury might be minimal. This distinction highlights that the severity of an injury does not directly correlate with the quality of care or show a causal relationship.

The selections you can choose from below are based on your responses throughout this form. As mentioned at the start of the form, the information you provide in this form is vital to our claim team's understanding of the care rendered by the defendant. Your opinions significantly inform the claim strategy.

STANDARD OF CARE

The SOC is the care, skill, and treatment recognized as pertinent by similar, reasonably prudent health care providers. It is determined in the context of all relevant circumstances and available information. SOC serves as the benchmark in assessing the appropriateness of the provider's actions, including both direct patient care and in the supervision of or formal collaboration with other providers.

Conceptually, the standard of care is a continuum, ranging from that which is minimally required to that which is exceptional. Accordingly, to meet the standard, a provider's care, at the very least, must be considered acceptable; otherwise, it is negligent care. The standard in any given situation is influenced by several factors, including but not limited to statutes, regulations, clinical guidelines, research, and facility policies and procedures.

Based on your thorough assessment, provide a final rating of the standard of care.

1. Are there any deviations from acceptable practice not addressed within this form? ☐ Yes ☐ No ☐ Unclear

If **Yes or Unclear**, please explain

REQUIRED: CHECK BOX TO RIGHT BEFORE CONTINUING BELOW

2. SELECT ONE

NOTE:

- If you did **not** identify any deviations from acceptable practice throughout the form, including question 1 above, your selection should be a **4 or 5**, regardless of which options are available.
- If any deviation from acceptable care is **unclear**, your selection should be a **3**.
- If you identified **any** deviations from acceptable practice—including those related to documentation or communication—your selection should be a **1 or 2**.

- ☐ 1. The defendant's actions (or inactions) deviated from acceptable standards to an unquestionable degree.
- ☐ 2. The defendant's actions (or inactions) differed from that which most members of the medical community would have utilized.
- ☐ 3. Standard of Care cannot be determined due to the need for additional information
- ☐ 4. The defendant's actions (or inactions) would be viewed as acceptable by most members of the medical community.
- ☐ 5. The defendant's actions (or inactions) were unquestionably consistent with accepted medical practice.

3. If faced with the same circumstances as this defendant, what would most providers have done?

CAUSATION

Causation reflects whether a provider's actions (or inactions) caused or contributed to an injury. Causation is not dependent on whether the Standard of Care was met. For example, a patient presents with 3 days of left-sided weakness and the physician fails to diagnose cerebrovascular accident, but the onset of symptoms is further out than any emergent treatment window. Therefore, the physician has not met the SOC for missing the diagnosis of CVA, but the defendant's actions did not cause or contribute to the injury because thrombolytics and thrombectomy are no longer indicated by the time the patient presents. Thus, a timely diagnosis or any treatment rendered would not have changed the patient outcome.

Based on your thorough assessment, please indicate your final opinion as to whether the defendant's care caused or contributed to the patient's injury.

1. Are there any instances where the provider's actions or inactions impacted the patient's outcome that were not addressed within this form? ☐ Yes ☐ No ☐ Unclear

If **Yes** or **Unclear**, please explain

REQUIRED: CHECK BOX TO RIGHT BEFORE CONTINUING BELOW

2. SELECT ONE

NOTE:

- If you did **not** identify any instance where the provider's actions or inactions clearly impacted the patient's outcome, your selection should be a **4 or 5**, regardless of which options are available.
- If you were **unclear** as to whether the provider's actions or inactions impacted the patient's outcome, your selection should be a **3**.
- If you identified **one or more** instances where the provider's actions or inactions clearly impacted the patient's outcome, your selection should be a **1 or 2**.

- ☐ 1. The defendant's actions (or inactions) clearly caused and were the sole source of the injuries.
- ☐ 2. The defendant's actions (or inactions) were not the sole cause but did contribute to the injuries.
- ☐ 3. Causation cannot be determined due to the need for additional information
- ☐ 4. The defendant's actions (or inactions) were not the primary cause but may have contributed to the injuries.
- ☐ 5. The injuries were not caused by any of the actions (or inactions) of the defendant.

CLOSING THOUGHTS**QUESTION****RESPONSE**

1. Are there any widely accepted clinical decision tools (i.e., algorithms, protocols, checklists) that you use in your daily practice which informed your opinion(s) in this case?

☐ Yes ☐ No

If **Yes**, please list. Please do not conduct a literature search unless specifically instructed to do so by the Claims Analyst assigned to this case

2. Was the care exceptional?

☐ Yes ☐ No

If **Yes**, please describe the key factors/practices that went well.

3. Was there anything about the care that was outside of your area of expertise?

☐ Yes ☐ No

If **Yes**, explain

4. Please set forth any additional information, comments or observations, which you believe may be helpful to. (A) Our understanding of any aspect of the medical care provided; (B) Our understanding of the damages alleged. Please focus your comments on the medicine and avoid any language like "I would settle this claim" or "this is defensible" because that may be construed as legal advice.

Thank you for completing the medical faculty questionnaire. If you have any suggestions for improving the MagMutual faculty review process or form, please describe below or email Tanner Colegrove, MD, Chief Medical Officer, at tcolegrove@magmutual.com.